

- SEE ALSO NEWSLETTER OF MARCH 21, 2025

[doc. web n. 10114967]

Provision of February 27, 2025

Register of provisions

n. 114 of February 27, 2025

THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN the meeting held today, attended by

Prof. Pasquale Stanzione, President, Prof.

Ginevra Cerrina Feroni, Vice President, Dr.

Agostino Ghiglia and Attorney Guido Scorza, members, and

Counsel Fabio Mattei, Secretary General;

HAVING REGARD TO Regulation (EU) 2016/679 of the European

Parliament and of the Council, of April 27, 2016, concerning

the protection of natural persons with regard to the

processing of personal data, as well as the free

movement of such data and repealing Directive

95/46/EC (General Data Protection Regulation, hereinafter "Regulation");

HAVING REGARD TO the Code regarding the protection of personal data

(legislative decree June 30, 2003, n. 196), as

amended by legislative decree August 10, 2018, n. 101, containing

provisions for the adaptation of the national

legal system to the aforementioned Regulation (hereinafter
"Code");

HAVING REGARD TO the documentation on file;

HAVING REGARD TO the observations made by the Secretary

General pursuant to Article 15 of the Guarantor's

Regulation n. 1/2000, adopted by resolution of June 28, 2000;

REPORTING Dr. Agostino Ghiglia;

1. THE INSTRUCTIONAL ACTIVITY CARRIED OUT

1.1. Premise

With act n. 131956 of November 11, 2024 (notified

on the same date via certified electronic mail),

which must be understood as fully reproduced here,

the Office initiated, pursuant to Article 166, paragraph 5,

of the Code, a proceeding for the adoption of the

measures referred to in Article 58, paragraph 2, of the

Regulation against Energia Pulita S.r.l.

(hereinafter "Energia Pulita" or "Company"), represented

by the pro tempore legal representative, with its

registered office in Milan (MI), Via Vincenzo Monti, 48, VAT

number 10802400969.

The proceeding originated from an investigation

initiated following the receipt of eighty-two

reports brought to the attention of the Authority

regarding unwanted calls made in

the absence of an appropriate legal basis.

1.2. The requests for information made

by the Authority

On June 26, 2024, the Office initiated an investigation

against Energia Pulita S.r.l. (hereinafter

"Energia Pulita," "Company," or also the "Data Controller"),

through a cumulative request for information,

formulated pursuant to Article 157 of the Code (see Prot. n. 78301/24), useful for the evaluation of numerous other reports received by the Authority between November 2023 and June 2024, mainly related to telemarketing.

With the same note, the Company was requested to

“provide a list of purchase proposals

originating from its sales network that led to the activation of energy services in

the period from February 5, 2024, to February 12, 2024,

inclusive, divided between ‘residential’ and ‘business’,”

as well as to provide clarifications regarding:

- the relationships with the companies

using some of the calling numbers that are the subject of the report (see Broker S.r.l., Dialtech S.R.L.S., A1 Service S.r.l.s., Rocket S.r.l.);

- the instructions given to its suppliers for carrying out telemarketing activities and the measures implemented for the supervision and monitoring of their operations;

- the “methods of providing information on the processing of personal data to the data subjects who submit applications through the form available on the website <https://www.energiapulita.energy/lavora-con-noi>”;

- the “nature of the contractual relationships in place with Green Network S.p.A. for electricity and gas, Antenore Energia S.r.l. and Metan Alpi Sestriere Teleriscaldamento S.r.l., including the assignment of subjective roles and the processing of personal data carried out by and on behalf of these companies, as well as the measures adopted for the separation of databases containing customer data belonging to the individual companies and to prevent the risk of unauthorized access by non-authorized parties.”

With a note dated July 11, 2024 (see Prot. n. 86098 of July 12, 2024), providing the first of the requested responses, the Company preliminarily stated that it uses the following sales channels:

- commercial agencies that, by virtue of an agency

contract, promote the Company’s products and services through one or more of the following methods:

“i) teleselling activities, ii) telemarketing activities followed by a physical contact with the customer, iii) use of commercial premises available to the agency, iv) door-to-door visits to

final customers (marginal activity) and v) the so-called ‘virtual sales outbound rec’ channel”;

- comparators, which, by virtue of a specific agreement, promote the Company’s products and services through their web platform and subsequently conclude the contract with the final customer, as well as upload it to the company CRM;

- employees and/or collaborators of Energia Pulita who operate at physical counters in the territory.

With specific reference to the so-called “virtual

sales outbound rec” channel, the Company highlighted that based on this sales methodology, the seller

contacts the potential customer by phone to

gauge interest in the services subject to the ongoing promotional campaign and provides for the insertion of the related contractual proposal on the customer relationship management platform ("CRM") of Energia Pulita. At a later stage, the potential customer "is first sent an SMS containing an OTP code that allows the customer to confirm their identity and, subsequently, a link – which the customer receives at their email address – through which the potential customer can, after entering the aforementioned OTP code, access the contractual package of Energia Pulita and confirm their intention to enter into a contract with Energia Pulita."

In the same note, Energia Pulita also highlighted that in the context of energy activations related to Switcho S.r.l. "the contracting process takes place via a web platform and no phone calls are made to potential customers."

Finally, the Company produced the following lists of purchase proposals related to the period indicated by the Authority:

- No. 639 proposals in the context of "residential teleselling";
- No. 246 proposals in the context of "residential physical network";
- No. 15 proposals in the context of "residential comparators";
- No. 1328 proposals in the context of "residential virtual sales";
- No. 42 proposals in the context of "business teleselling";
- No. 51 proposals in the context of "business physical network."

In a subsequent note sent on July 26, 2024 (see Prot. No. 93584 of July 29, 2024), Energia Pulita highlighted that "none of the 82 contested contacts with complaints ever resulted in the conclusion of a contract with the Company, which therefore did not benefit in any way from such telemarketing and teleselling activities. In fact, none of the 82 complainants are present in the CRM (Customer Relationship Management) of Energia Pulita, except for 4 cases related to individuals already contracted by Energia Pulita at the time of the complaint and the nuisance call."

The Company also represented that "since November 2023, it has initiated a compliance path to the code of conduct for telemarketing and teleselling activities ("Code of Conduct"), wishing to adopt, regardless of the actual applicability of the Code of Conduct and without knowing the number of complaints received by the Authority, the necessary measures to ensure compliance" and that "as early as March 2024, after the gap analysis phase, the Company began to adopt new compliance measures."

Then, with specific reference to the reports received by the Authority, Energia Pulita disclaimed all calling numbers subject to reporting, except for files No. 323520 and 344211, which were the subject of complaints also received by the Company and related to contacts legitimized by consent; file No. 357058, with which the complainant reported receiving an unwanted call attributable to Dialtech S.r.l.s., a sub-agency of RG Group S.r.l.

Regarding the four reports addressed to both the Authority and Energia Pulita, and one report sent to a certified email address belonging to another company but similar to that of Energia Pulita (see files No. 323520 – 367610 – 337805 – 344211 – 353028 - 343273), the Owner represented the following.

With respect to file No. 323520, after conducting the appropriate internal checks, the Company stated that it had promptly responded to the interested party, communicating that the first call had been made by its own agency RG Group S.r.l., based on consent given on a date subsequent to the registration in the RPO, but that the words used during the call and the use of a number not registered with the ROC constituted a violation of the contractual provisions. Following these events, Energia Pulita had notified the agency of the application of "a contractual penalty that the Company did not apply immediately considering that the contact had nonetheless occurred based on consent, but which it will apply in case of repetition of the improper conduct." In any case, the name of the complainant has been added to the Company's and its agencies' black-list.

Regarding report No. 367610, the Company clarified that it had responded to the interested party, stating that "no supply contract had been concluded; the personal data of the complainant were not

present in the Company's CRM; the personal data of the complainant were not present in the CRMs of the Company's sales partners," and that it had "in any case ordered the inclusion of the complainant's number in the black-list of the Company and its agencies."

With reference to report No. 337805, Energia Pulita stated that it had responded to the requester, highlighting that "the call did not come from a number traceable to the Company or its partners (in this case, therefore, the name of Energia Pulita was used illegitimately); (ii) their personal data were not present in the Company's records nor in those of the partners; and (iii) their contact details had been included in the black-list of the Company and that of its agencies." Again, Energia Pulita had conducted the necessary investigations with its partners and confirmed that the calling number did not belong to its agency network.

Regarding report No. 344211, the Company had provided feedback to the user indicating that no account had been activated and that the personal data of the interested party were not present in the company systems, except for those related to the management of the complaint, and that appropriate checks had been initiated with Rocket S.r.l. From these investigations, the legitimacy of the contact by the sub-agency had emerged, based on consent provided after the registration with the RPO, and in any case, the insertion of the reporting number into the Company's and its agencies' black-list had been ordered.

Regarding report no. 353028, the holder clarified that they had reassured the interested party that there had been no activation of supply and that the data of the reporter were not present in the Company's databases. In any case, the Company had ordered the insertion of the number in question into the Company's and its agencies' black-list.

Finally, with specific reference to file no. 343273, Energia Pulita noted that this complaint had been sent to a PEC address belonging to another company. Again, from internal checks, it had emerged that no contract had been activated, that the personal data of the interested party were not present in the company systems, and that the calling number could not be traced back to its sales network.

With the same note and in response to the requests made by the Authority, Energia Pulita provided "the standard contract (and the related attached call scripts) adopted by Energia Pulita before the start of the compliance process in March 2024 (doc. 8); and the standard contract adopted subsequently, already in use for all new agencies and in the process of being extended to the agencies already in charge through specific addenda that the Company is preparing, containing the necessary integrations to ensure full compliance with the Code of Conduct (doc. 9) with the related call scripts used that the Company has updated and is implementing during this period."

Regarding the relationships with the Agencies, which, after consulting the ROC, had been found to be the users of some of the calling numbers subject to reporting, the Company stated that it had "no ongoing and/or terminated relationship" with Broker S.r.l. and A1 Service S.r.l.s. On this point, Energia Verde also clarified that it had "acquired a business unit from Green Network S.p.A. (...). As part of the acquisition of this unit, there was also the contract between Green Network, as the principal, and RG Group S.r.l. (previously Start Group S.r.l.), as the agency (doc. 12). Following the acquisition of the unit, Energia Pulita signed a new appointment deed as data processing manager with RG Group S.r.l. (previously Start Group S.r.l.)" and that RG Group S.r.l., in turn, had appointed Dialtech S.r.l.s. and Rocket S.r.l as sub-processors.

The Company then illustrated the monitoring activities on the agency network carried out until March 2024, those implemented after that date, and those currently being implemented. More specifically, until March 2024, the monitoring and control measures put in place regarding the agencies were mainly related to the request for sample reporting on checks carried out at the FUB or on the existence of an appropriate legal basis for the processing of personal data for marketing activities (i.e., consents and information). Furthermore, the Company included specific contractual clauses regarding compliance with personal data protection regulations, the violation of which could result in the application of a penalty or the non-recognition of the commission. In addition, the contractual proposals uploaded by the agencies to the company CRM were subjected to specific checks and "Quality Check

Calls." Finally, in the event of termination of the agency contract, Energia Pulita ensured the "immediate closure of credentials."

Starting from March 2024, as part of a broader corporate compliance program, the measures just described had been integrated with the provision of certain checks related to privacy competencies to be carried out in the agent selection phase, the organization of training activities aimed at employees, and the revision of the standard contract in use for teleselling activities.

Regarding the methods of providing information on the processing of personal data to interested parties who submit applications through the form on the website

<https://www.energiapulita.energy/lavora-con-noi>, the Company highlighted that "the information was uploaded to the site on July 8, 2024, following an internal verification and a subsequent reminder sent by the compliance officer of Energia Pulita to the competent function managing the site, already sent on June 20, 2024. In any case, at the time of the interview, candidates are always provided with an ad hoc information notice" and that an additional revision of the information in use was planned, including the information for candidates downloadable from the website.

Finally, Energia Pulita provided the requested clarifications regarding the relationships with other energy operators indicated on the company website, also stating that "on the first page of access to the customer area of the Energia Pulita website, customers are asked to indicate the brand (among Green Network, Antenore, and Metan Alpi) through which they concluded the contract with Energia Pulita, provided that the customer information present on the site refers only to Energia."

****Clean as the data controller.****

More specifically, the Company highlighted that it had acquired "a business unit from Green Network S.p.A. (...). The business unit included the registered trademark 'Green Network' and all its derivatives (...). For this reason, Energia Pulita uses the indicated trademarks, but this does not mean that there are different owners or different databases in relation to the data of the end customers."

The owner then stated that he had "never had any contractual relationship with Metan Alpi Sestriere Teleriscaldamento S.r.l. but exclusively with Metan Alpi Sestriere S.p.A. (...), a company that we understand is participated by the aforementioned Metan Alpi Sestriere Teleriscaldamento S.r.l." The Company, in fact, "acquired a business unit from Metan Alpi Sestriere S.p.A. (...) and (...) obtained an exclusive and onerous license to use the trademark 'METAN ALPI'. For this reason, Energia Pulita uses this trademark, but this does not imply that there are different owners or different databases in relation to the data of the end customers involved in the transfer of the business unit."

Antenore Energia S.r.l. (hereinafter also "Antenore") and Energia Pulita, on the other hand, had entered into three contracts for the provision of mutual services, under which each party acts – depending on who provides the services – as the data processor for the other party as specified in the appropriate appointments regarding data processing within each contract. Specifically, "Energia Pulita provides electricity and natural gas to certain customers of Antenore indicated in the appropriate annex to the contract, also taking care of the issuance and collection of invoices and customer assistance. For this purpose, Energia Pulita processes the data of Antenore's customers, which are contained in Energia Pulita's CRM along with the data of the Company's own customers. The separation within the CRM is guaranteed by the access methods to it by Antenore, which can access exclusively the data of its own customers through specific credentials. It is specified that, for the entire duration of the aforementioned contract, Antenore Energia S.r.l. granted Energia Pulita S.r.l., exclusively, the license to use the trademark 'Antenore Energia'." At the same time, "Antenore acts as a commercial agent – on an exclusive basis – on behalf of Energia Pulita, and has therefore been appointed as the data processor (...) the contracts concluded by Antenore on behalf of Energia Pulita are contracts promoted through the licensed trademark 'Antenore Energia'." In addition, Antenore provides fronting and outbound services, as well as collection and recovery operations concerning amounts related to the customers of Energia Pulita S.r.l. procured by Antenore Energia S.r.l. (...); even in this case, since the data processed pertains to customers of Energia Pulita S.r.l., Antenore Energia S.r.l. has been appointed as the data processor.

1.3. Verification at the Public Registry of Oppositions

In order to carry out the necessary checks regarding the correctness of the aforementioned telemarketing activities, on August 13, 2024 (see Prot. no. 99048), the Office sent to the Ugo Bordonì Foundation, which manages the Public Registry of Oppositions, the aforementioned list of telephone numbers subject to the mentioned feedback from Energia Pulita. In this context, information was requested, pursuant to Article 157 of the Code, for each number regarding any registration in the Public Registry of Oppositions (RPO) not subsequent to December 31, 2023.

On August 27, 2024, the Foundation sent its feedback (see Prot. no. 101580 of August 28, 2024), from which it emerged that 157 telephone lines were registered in the Public Registry of Oppositions at the time of the promotional calls made by the Company, representing just over 6.75% of the total number of telephone contacts made during the reference period (n. 2,327).

1.4. Supplement to the investigation

During the investigation, further reports were received by the Authority against the Company, in which the interested parties complained about receiving unwanted calls made in the absence of a suitable legal basis and coming from numbers not registered in the ROC (see file nos. 381587 – 386244 – 387286 – 387396 – 387909 – 388262 – 390395 – 391357 – 391441 – 397354 – 399349 – 405133 – 405186 – 409771 – 411093 – 411191 – 411222 – 411755 – 411883 – 413466). In order to promote a comprehensive examination of all the issues raised, although received at different times, pursuant to Article 10, paragraph 4, of internal regulation no. 1/2019 (available for consultation on the website www.gdpd.it, doc-web no. 9107633), the Office deemed it appropriate to also address these reports within the current proceedings.

The consolidation of the proceedings allowed for the full implementation of the principles of economy and reasonable duration of the proceedings and, at the same time, to ensure the right to defense and the non-aggravation of the proceedings recognized by law to the data controller.

1.5. Contestation of violations

The Office, at the conclusion of the investigation, adopted the aforementioned act of contestation no. 131956/24 in which, first of all, it was noted that having contacted 157 telephone numbers in the context of the telemarketing activities carried out during the period January - February 2024 (representing just over 6.7% of the total number of telephone contacts made for promotional purposes, while the same numbers were registered in the RPO - and therefore of the opt-out mechanism established by current regulations) could constitute a possible violation of Article 130 of the Code, as well as more generally, Articles 5, paragraph 1, letter a) and 6, paragraph 1, letter a).

of the Regulation, with regard to the principle of lawfulness and the necessity of the legal basis of consent to legitimize the processing of the data in question for promotional purposes. The existence of the aforementioned violation also seemed to be confirmed by the multitude of reports that the Authority had received and continued to receive during the proceedings. To these observations, there was also the significant case of sudden switches highlighted by the feedback provided on the reports. From the documentation submitted, it emerged that in eight cases (out of a total of 82), the reporters had activated a supply with Energia Pulita for only one month or a little more. All the circumstances just mentioned, considered together, led to the conclusion that in violation of the obligations imposed on the data controller pursuant to Articles 5, 24, 25, 28, and 32 of the Regulation, the Company had failed to exercise the necessary control over the entire processing chain and to implement adequate technical and organizational security measures to prevent the risk of activation of supplies resulting from illicit contacts, thus fueling the so-called underground telemarketing sector. More generally, the documentation and allegations acquired overall seemed to provide a picture of privacy governance that was not fully compliant and updated to the current regulations on the protection of personal data and the principles consistently established also through the measures of the Authority. Similarly, the fact that the organization of training activities had only taken place in 2024 appeared to be in contrast with the obligations imposed on the data controller pursuant to Article 29 of the Regulation, which requires not only providing training for personnel before or at least during the initial periods regarding the actual assignment to the processing of personal data but also to ensure periodic updating activities, customized based on the specific tasks performed. Finally, also in relation to the processing of personal data collected through the forms present on the company website (i.e., candidates and contact requests), certain critical issues were noted both with regard to the principles of clarity and

transparency referred to in Articles 5, 12, and 13 of the Regulation, and in relation to the lawfulness of the processing and the existence of an appropriate legal basis pursuant to Articles 5, 6, 7, and 9 of the Regulation and Article 111 bis of the Code. The Office, therefore, contested to Energia Pulita the alleged violation of Articles 5, 6, 7, 9, 12, 13, 24, 25, 28, 29, and 32 of the Regulation, as well as Articles 111 bis and 130 of the Code, for having carried out the above-described processing of personal data of users and contractors in the energy sector in violation of the principles of lawfulness and accountability, in the absence of an appropriate legal basis and implementing inadequate technical and organizational measures to ensure, from the design stage, and to be able to demonstrate, that the processing is carried out in accordance with the Regulation.

2. THE DEFENSE OF THE DATA CONTROLLER

With defensive memoranda transmitted on December 11, 2024 (see Prot. No. 146050 of December 12, 2024), the Company preliminarily highlighted that "Energia Pulita was established in 2019, shortly before the onset of the pandemic crisis, and until 2023, the Company had only 4 agencies for carrying out teleselling activities." Subsequently, "This activity was only increased starting from January 16, 2023, when the Company acquired from Green Network S.p.A. (...), a business unit to which 26 agency contracts were attributable (4 of which carried out telemarketing/teleselling activities)." Energia Pulita also clarified that the aforementioned transfer of the business unit - along with the associated commercial network - "created the need to manage new customer acquisition activities, both through the physical channel and telemarketing and teleselling." For this reason, starting in November 2023, the Company undertook a compliance path. Regarding the governance of personal data protection prior to November 2023, Energia Pulita stated that the Company had implemented the following measures:

- i. request for reports related to contacts made with potential customers to verify that they were not registered in the Public Opposition Register (RPO) at the time of signing the contract with the Company, or that privacy consent had been obtained after such registration. Additionally, on a sample basis (over 10 contacts for each agency), "it was requested to attach screenshots demonstrating the control carried out on the RPO, with the date and time of the so-called 'fubbatura'";
- ii. request for a bimonthly report to demonstrate that customers had provided consent to be contacted for marketing purposes, detailing the campaign used, the privacy notice provided, and any specific additional elements;
- iii. imposition of contractual obligations concerning the numbers used, the times and methods of calls, and the recording of the customer's refusal to receive commercial contacts during the promotional call or on other occasions, with communication to Energia Pulita of the related refusal;
- iv. provision of scripts to be used for making promotional calls;
- v. non-recognition of the commission to the agent in the event of a complaint for activation not... request;
- vi. imposition of a penalty equal to 8% of the total commissions accrued in the last twelve months for the agent in case of a complaint for unsolicited activation;
- vii. checks on the contract proposals uploaded by the agency within the Company's CRM;
- viii. mandatory Quality Check Call for teleselling agencies;
- ix. control of the contractual package;
- x. immediate closure of the agency's credentials for access to the corporate CRM at the time of termination of the contractual relationship.

The Company also represented that it had initiated in November 2023 a "compliance path to the Code of Conduct, wanting to adopt, regardless of the actual applicability of the Code of Conduct and even if not aware of the Complaints, the necessary measures to ensure the compliance of its governance with the most recent regulations in the matter," therefore at the beginning of 2024 the following measures were also implemented:

- i. requests for specific information from agencies during the selection process;
- ii. periodic training for employees of the agency network;
- iii. contractual modifications (exclusion of commissions in case of illegal contacts, as well as for unsolicited activations and provision of specific obligations for agencies, communication of the

numbers used, use of recognizable and non-clonable numbers, drafting of detailed reports of promotional campaigns, timely management of refusals and registration in blacklists, etc.);

- iv. implementation of the Multi-Factor Authentication ("MFA") system with registration of the second device used;
- v. tracking of the IP addresses of agents authorized to upload contracts on behalf of Energia Pulita;
- vi. periodic audits on agencies and review of scripts and control calls to verify the origin of contacts;
- vii. blocking check call: the Company verifies the compliance of the contact and the willingness of the interested party to conclude the agreement through a control call. In the absence of the customer or a willingness not to proceed with the contractual process, it is blocked and a penalty is applied to the agency;
- viii. exclusion of the commission to the agency in case of complaint for unsolicited activation, as well as whenever it emerges that the initial contact was illegal, in addition to the application of a penalty for each violation of privacy regulations.

With specific reference to the findings from the verification conducted on the so-called sample week, Energia Pulita first argued that the numbers registered in the register, net of duplication cases, were ninety-six and therefore the relative percentage decreased to 4.13%.

According to the defensive theory presented by the Company, moreover, all the aforementioned contracts were legitimate as they were "attributable (i) to calls made based on consents to marketing subsequent to the registration of the interested parties to the RPO or requests for callback by the interested parties themselves; (ii) to the physical channel, and therefore for which no verification regarding possible registration to the RPO is necessary; or, finally, (iii) to contracts concluded directly by the interested parties on the websites of comparators, in the absence of any telemarketing activity by the Company and/or the comparator itself."

Regarding the reports received by the Authority, the Company denied all contacts subject to complaint as they were made using calling numbers foreign to its network of agencies, except for the three cases illustrated below.

With reference to the complaint in file no. 323520, the Company clarified that the contact was made by an agency of the Company (i.e., RG Group S.r.l.), based on consent granted after the registration to the RPO, however, the agency had violated the contractual provisions regarding the words used and for using a number not registered with the ROC. Since the contact was made lawfully, Energia Pulita issued a warning and a caution to the agency in question, as well as requested the deletion of all personal data of the complainant. Additionally, the name of the complainant was added to the blacklist of the Company and its agencies. Subsequently, starting from September 30, 2024, Energia Pulita terminated all relations with that agency.

In relation to file no. 344211 – concerning the case of an interested party who complained about receiving promotional calls from various numbers, including one belonging to Rocket S.r.l., a sub-agency of RG Group S.r.l. – the Company highlighted that in this case no account had been activated and that the data of the interested party were not present in the systems of Energia Pulita. In any case, the number of the complainant had been added to the blacklist of the Company and its agencies. Therefore, the Company argued that "the name of Energia Pulita has thus been used illegitimately in the first call. As for the call attributable to Rocket S.r.l., the Company's checks confirmed that the contact from the sub-agency was based on valid consent, granted after the registration to the RPO."

In relation to files no. 357058 and 391741 - in which the interested parties complained about receiving unwanted calls made in the interest of Energia Pulita – the Company acknowledged that such contacts were also attributable to RG Group S.r.l. and reiterated that it had terminated any relationship with the aforementioned agency as of September 30, 2024. The Company then highlighted that none of the eighty-two contested contacts raised through the complaints submitted to the Authority prior to the opening of the investigation, nor the twenty contacts contested during the proceedings, ever resulted in the conclusion of a contract with the Company, which therefore did not in any way benefit from such illegal telemarketing and teleselling activities.

In denying the contested contacts, Energia Pulita also represented that "the phenomenon of the undergrowth in telemarketing arises from the activities of operators who are not officially linked by contractual relationships with energy operators and who (...) initially declare to work for an operator to convince the interlocutor to stay on the phone and then offer a different contract. In this way, the agencies become untraceable both in the eyes of the interlocutor and, consequently, before the Authority which receives the complaint against a company, in this case Energia Pulita, that has never mandated such agencies nor benefited from their operations."

For the reasons illustrated, "even if any of the phone calls subject to complaint had turned into energy contracts of Energia Pulita (which has not been the case), this would represent only a cost (and thus, an economic damage) for Energia Pulita and not an advantage."

Regarding the measures adopted to implement appropriate controls on the contact chain, Energia Pulita represented that in 2023 and subsequently in 2024, with the acquisition of the business branch of Green Network S.p.A., the Company had initiated a compliance process with current regulations on personal data protection and the Code of Conduct, which led to the implementation of the following measures:

- i. in the context of the agent selection procedure, it is requested whether the agencies have received complaints or reports to the Authority or inspections or measures from them; how the candidate agency forms the contact lists and how these are purchased and controlled; the checks and contractual obligations imposed on sub-agents; as well as the instructions provided to employees/agents;
- ii. training of agents (conducted in May 2024 and then periodically at least every 9 months);
- iii. modification of the standard agency and teleselling contract in use, providing for the non-recognition of the commission not only in case of complaints for unsolicited activation but also in case of illegal initial contact; as well as providing for additional contractual obligations on the part of the agencies (communication of the numbers used; use of a recognizable calling line (with a specific prefix for call centers or another number as long as it is callable); reporting on promotional campaigns; use of blacklists; being able to provide suitable information to users; using technological solutions that allow immediate identifiability);
- iv. traceability of the entire chain that from the phone contact allows reaching a contract (ROC number, IP and name of the calling operator; date and time of the contact; biannual audit of active operators within the commercial network (teleselling and physical network); integration of call scripts; adoption of an alert system and MFA for agents with registration of the second device; tracking of agent IPs).

Regarding the specific allegations made by the Authority, the Company initially observed that Energia Pulita periodically conducts audit activities at its agencies verifying the measures adopted for compliance with current regulations on personal data protection (e.g., checking the register of processing activities, the information provided to customers, the appointments of data controllers and authorized persons; privacy procedures; management of lists; training activities carried out).

As for the Check Call procedure, the Company clarified that "the Check Call implemented by the Company, in fact, involves investigating the will of the interested party to conclude the contract and, in case of a negative response, blocking the contractual process. Only in the case of the interested party's willingness to proceed with the contractual process does the Company proceed in this manner even in the case of illegitimacy of the first contact, thus respecting the will of the interested party while at the same time ensuring the blocking of the commission payment to the agency, in addition to applying a contractual penalty."

Energia Pulita contended that although KWH S.r.l. performs the Quality Check Call and at the same time operates as an agency, the conduct of such activities is not ambiguous since it guarantees the segregation of roles between those responsible for telemarketing and teleselling activities and those who carry out the quality calls.

Regarding the contested violation of privacy regulations related to the processing of data collected through the forms on the company website, Energia Pulita represented that it had already updated the information available on the site – acknowledging that it had identified an incorrect legal basis for the processing – but nevertheless contended that it was merely a theoretical violation without practical consequences for the interested parties. The Company reiterated that it had published on the site on July 8, 2024 also...

sections: teleselling e virtual sales outbound, e che i consensi raccolti attraverso questi canali devono rispettare i requisiti di legge».

In conclusione, l'Autorità ha ritenuto che le evidenze fornite da Energia Pulita non siano sufficienti a dimostrare la conformità alle normative vigenti in materia di protezione dei dati personali e telemarketing. Pertanto, le contestazioni rimangono valide e la Società dovrà adottare misure correttive per garantire il rispetto delle disposizioni normative applicabili.

distinct phases: i) in the first phase, the seller contacts the potential end customer by phone to verify their interest in the services subject to the ongoing promotional campaign and subsequently enters the relevant contractual proposal on the customer relationship management ("CRM") platform of Energia Pulita; ii) in the second phase, the potential end customer is first sent an SMS containing an OTP code that allows the customer to confirm their identity and, subsequently, a link – which the customer receives at their email address – through which the potential customer can, after entering the aforementioned OTP code, access the contractual package of Energia Pulita and confirm their intention to enter into a contract with Energia Pulita.

The concepts of telemarketing and teleselling, on one hand, pivot on the means used for the processing of personal data operations, and on the other hand, on the purpose pursued by the data controller. Therefore, for the purpose of identifying the applicable regulations, it is not only the context in which the contract was concluded that matters, but also the activities leading up to the actual signing of the agreement. The cases that the Company classifies within the virtual sales outbound channel, as they are supported by prior telephone contact activities, are then subject to the same obligations and responsibilities currently in force regarding telemarketing and teleselling in the strict sense.

In this regard, the definition of telemarketing and teleselling in Article 2 of the Code of Conduct on telemarketing – which, regardless of actual adherence, has an undeniable value as best practices – states that "a) 'telemarketing' refers to telephone contact activities with an operator carried out for promotional purposes through direct calls to national fixed and mobile numbers; b) 'teleselling' refers to telephone contact activities with an operator carried out for direct sales purposes through calls made to national fixed and mobile numbers."

This assumption, moreover, appears to be shared by the same Company, which, while having differentiated the sales channels, has represented and documented that it has obtained the consent of the interested parties at a date subsequent to the registration in the Public Register of Oppositions (RPO). However, all contacts attributable to the so-called sample week and processed through the teleselling or virtual sales outbound channel, following access to the portals made by the Office at a date subsequent to the notification of the dispute and the submission of defensive memoranda, are not supported by valid consent.

More specifically, in nine cases, the contract is traceable to the agency RG Group S.r.l. and the portal nuoveofferte.com. Following access to nuoveofferte.com, it emerged that the portal in question is owned by the London-based company Dynamic Web Europe Ltd and that the homepage presents a data collection form useful for receiving the "most advantageous offers." Although at first glance the form presents distinct non-preselected options for obtaining consent (i.e., one for sending commercial communications from nuoveofferte.com, one for the transfer to third parties for promotional purposes, and one for profiling purposes), the option related to the transfer of personal data to third parties for marketing and commercial purposes, invoked by the current data controller, does not allow for the granting of free, specific, and granular consent as per Articles 4, point n. 11), 6, and 7 of the Regulation, and does not nullify the opposition raised by the interested parties through registration in the Public Register of Oppositions.

Due to the broad formulation used regarding the numerous and indistinct audience of personal data transferees operating in very different sectors, in fact, the interested party who wishes to receive offers related to one or more of the indicated product categories or wishes to receive them through only one of the indicated channels is, in fact, forced to give a unitary consent to the indiscriminate transfer of their data to all, indiscriminately, third-party recipients for promotional purposes and is not placed in a position to easily exercise the rights recognized by current legislation (see, in this regard, the formula used by the Company "I consent to the transfer for marketing and commercial purposes, using the telephone with an operator and/or automated systems (e.g., email, SMS) and/or sending promotional material by post, to third parties belonging to the following economic and product categories: Tourism, leisure, High Tech, Fashion, Furniture, Fast-Moving Consumer Goods, Food & Beverage, Finance, Banks, Insurance, Energy, Environment, Communication, Media, Entertainment, Real Estate, Pharmaceuticals, Automobiles, Clothing and textiles, Education, Energy, Publishing, ICT, Retail, Sports, Telecommunications, and Services in general (for the complete list click here)."

Moreover, by using the "click here" command present within the aforementioned form, the user is redirected to a page containing an even broader list of third-party recipients and means of communication (see "Subject to your consent, the personal data collected may be communicated to companies, entities, or associations, even without profit purposes, belonging to the following categories: credit institutions (including Banca Progetto SpA, Vivi banca Spa, Ibl Banca SpA), insurance companies, commercial distributors, communication agencies, companies active in direct marketing, utilities (among others).

as C.I.P. srl), car manufacturers, brokers, financial companies (including Dynamica Retail SpA, Sigla Srl), personal advisors/financial consultants/wealth management, suppliers of electrical and/or energy services (including Enel Energia SpA, Eni Gas e Luce SpA, Acea Energia Spa, A2A Spa, Edison SpA, Hera Comm Spa, Iren Luce e Gas SpA, Illumia SpA, Made in Energy SpA, Olimpia Srl, Optima SpA, Iberdrola SpA, Green Network SpA), suppliers of fixed and/or mobile telephony and/or ADSL/Fiber optic services (including Fastweb SpA, Linkem SpA, Telecom Italia SpA, Vodafone SpA), publishing houses, distributors and publishers of newspapers, magazines, and books, suppliers of food and wine products, office supply providers, suppliers of digital and/or satellite TV services and broadcasters, producers and/or distributors of children's products, companies operating in the field of consumer goods, non-profit organizations (including organizations, political parties and movements, trade unions, religious, philosophical, recreational, and sports associations) and public and private entities, intermediary companies. These subjects will process personal data as "independent data controllers" for promotional marketing activities, including research and opinion polls, on their own products and services or those of third parties, through automated tools (e-mail, SMS, fax, MMS, messages on social networks, WhatsApp, Messenger, online instant messaging applications, web and mobile push notifications) and non-automated tools (paper mail, telephone with operator). The legal basis for the processing of data for this purpose is Article 6.1.a) of the GDPR.

The use of formulas for obtaining consent for the processing of personal data for transfer to third parties for marketing purposes that are so broad and generic does not allow the data subject to express a granular and differentiated will, for example, in relation to the merchandise category of the commercial offers they wish to receive (i.e., telephony, energy supplies, insurance services, fashion, cars, etc.) or that, due to the peculiar configurations of the forms and the information used, does not allow them to easily express their will regarding the means through which to convey promotional communications, does not allow for a valid, informed, and unequivocal manifestation of the will of the data subject, since it results in an uncontrollable dissemination of personal data in favor of an indistinct audience of operators, undermining the possibility of effectively exercising the rights recognized by law in favor of the data subjects.

The manifestation of will regarding the transfer of data to third parties for marketing purposes can only be considered truly free if the data subject is guaranteed an effective choice and control over their personal data (cf. Guidelines No. 5/2020 on consent under Regulation (EU) 2016/679, para. 3.1 "The element of the 'free' manifestation of will implies that the data subject has an effective choice and

control over their data. As a general rule, the regulation establishes that if the data subject does not have an effective choice or feels compelled to consent or will suffer negative consequences if they do not consent, the consent will not be valid. If consent is a non-negotiable element of the general terms and conditions of the contract/service, it is presumed that it was not given freely. Consequently, consent will not be considered free if the data subject cannot refuse or revoke it without suffering detriment. The General Data Protection Regulation has also considered the notion of imbalance between the data controller and the data subject" and para. 3.1.3 "If the data controller has combined different purposes of processing and has not requested separate consent for each of them, there is no freedom. Granularity is closely related to the necessity for consent to be specific, as analyzed in section 3.2. When the processing of data aims to pursue different purposes, the solution to meet the conditions for the validity of consent lies in granularity, that is, in the separation of purposes and obtaining consent for each of them").

Conversely, this prerogative is frustrated, as occurred in the case at hand, through the use of consent formulas and graphic arrangements that have the effect of transferring personal data to an indistinct audience of recipients, operating in sectors that are also very different from each other or even to multi-mandate call centers. In fact, the data subject must be placed in a position to freely, granularly, and specifically express their will and thus be able to choose even for macro-categories regarding which products or services to receive promotional communications (e.g., through the implementation of specific forms that allow the selection of macro-merchandise categories or categories of recipients). Conversely, the data subject who wishes to receive, for example, only offers related to energy supply services is faced with the binary condition of either not giving any consent or giving it and receiving a multitude of commercial communications regarding services that have nothing to do with the energy sector, resulting in an undue intrusion into their sphere of privacy and an irreparable loss of control over their personal data.

The use of such forms, moreover, makes it difficult to trace the source of the data and the data controller, undermining the possibility of exercising the rights recognized to the data subject also regarding the choice of means used for receiving commercial communications (cf.

Prov. n. 242/2013 Consent to the processing of personal data for the purposes of "direct marketing" through traditional and automated contact tools, web doc. n. 2543820, which, although dated, contains principles of enduring validity, in the part where it prescribes that "the information must also indicate the possibility for the data subject, who does not wish to give consent in the terms indicated above, to express the possible wish to receive communications for the aforementioned purposes exclusively through traditional contact methods, where provided; d) such wish must be made exercisable easily and free of charge pursuant to the aforementioned art. 7, paragraph 4, of the Code."

Similarly, the thirty contracts concluded through the portal offerteenergetiche.it, which can also be traced back to the company RG Group S.r.l., are found to be concluded based on an unlawful contact, as they were made in the absence of prior acquisition of valid and effective consent pursuant to current regulations.

By visiting the aforementioned portal, owned by Skill S.r.l., a form is visible for providing data for the use of the "energy consulting" service. At the bottom of the form, there is only a consent acquisition module, which, when flagged, the data subject declares "I ACKNOWLEDGE the processing of personal data for the execution of the requested services, having read the Privacy Policy of Skill S.r.l. (Mandatory) [click here to view and select them individually.](#)"

Only by clicking within the aforementioned module do additional consent formulas appear (cf. "I confirm that I have read the Privacy Policy and acknowledge that my data will be processed by Skill S.r.l. and communicated to partner companies (Send an email to privacy@skillsrl.it to receive the complete list of our partners) to be contacted regarding the requested product/service (mandatory); I confirm that I have read and accepted the Terms of Use (mandatory); I confirm that I have read the Privacy Policies of the Operators (data of the Client companies) and acknowledge the treatments provided (mandatory); I consent to the processing of my personal data by Skill S.r.l. for the sending of promotional communications and advertising material, the offering of products and/or services of its

own or third parties, the carrying out of surveys and market research, by any means, including in particular the use of telephone with operator and/or automated systems (e.g. SMS, MMS, fax, auto-responders, push notifications, social media) Point 2 letter d) (optional); I consent to the processing of my personal data by Skill S.r.l. for profiling for commercial and marketing purposes based on the use of the site offerteenergetiche.it Point 2 letter e) (optional)."

It is glaringly evident that such formulas do not appear to be in line with current regulations since they do not allow for the expression of granular, free, and distinct consent for marketing activities and for the transfer of data to third parties for promotional purposes. Moreover, the technological measures used and the reference to whether they are mandatory or not appear misleading and lacking in transparency.

Similar observations must also be raised regarding the twenty-five contracts concluded with the assistance of the portal tariffiamo.com, owned by Datalia S.r.l., and traceable to the agencies LC Trade S.r.l. and No&MI S.r.l. This portal also seemingly acquires distinct consents for the processing of personal data for marketing purposes and for the transfer of data to third parties for promotional purposes (cf. "I confirm that I have read the Privacy Policy/Promotional Communications Read more I consent to the processing of my data for the sending of promotional communications by Datalia S.r.l. by the following means (telephone with operator, email, SMS, fax, MMS, push notifications, messages on social networks, auto-responders, and/or paper mail), related to products and/or services of Datalia S.r.l./Transfer of data to third parties Read more I consent to the transfer of my data to third parties, partners of the Data Controller, for commercial promotion purposes according to the methods described in paragraph "d" of the privacy policy." The list of third parties to whom the data may be transferred is available at this link: [Privacy Third Parties](#)).

However, upon consulting the list of third-party recipients, it emerges that the personal data thus collected are transferred to just over thirty entities operating in the energy, telecommunications, and promotional fields in general (call centers).

Likewise, the three contracts signed with the assistance of the portal www.ricercaofferte.com, owned by Runwhip S.r.l. and traceable to LC Trade S.r.l., are not supported by a lawful contact.

As seen previously, this portal also has a form useful for collecting personal data, for granting consent for marketing, and for granting separate consent for the transfer of data to third parties for promotional purposes. Nevertheless, the consents acquired do not meet the required criteria of freedom, specificity, and granularity since it is not possible to choose or limit the audience of data recipients or the means used for the conveyance of commercial communications (cf. information on the processing of personal data "With your express consent, personal data may be communicated to third-party clients, contractors, or partners of the Data Controller so that they may proceed...").

consensi) non è conforme ai principi di trasparenza e correttezza previsti dalla normativa vigente. Tali pratiche possono infatti generare confusione nell'interessato, compromettendo la sua capacità di esprimere un consenso informato e consapevole.

Inoltre, è fondamentale che il Titolare del trattamento fornisca informazioni chiare e accessibili riguardo alle modalità di trattamento dei dati personali, incluse le finalità, le categorie di dati trattati, i destinatari e i diritti dell'interessato. La mancanza di tali informazioni non solo viola i diritti degli interessati, ma mina anche la fiducia nel sistema di protezione dei dati.

Pertanto, si ribadisce la necessità di un approccio rigoroso e conforme alla normativa in materia di protezione dei dati personali, affinché gli interessati possano esercitare i propri diritti in modo efficace e consapevole, evitando pratiche che possano compromettere la loro privacy e sicurezza.

consents) or even prearranged to deceive their will, cannot be considered in compliance with the current regulations and also affect the legitimacy of the processing carried out using personal data collected through the described methods.

The existence of the violations mentioned is further confirmed by the multitude of reports that the Authority received prior to the initiation of the investigation and during its course, regarding the receipt

of promotional calls made in the interest of Energia Pulita, in the absence of prior consent and, in almost all cases, using numbers not registered with the ROC.

The number of complaints and the nature of the circumstances reported consistently outline a true *modus operandi* attributable to the phenomenon of so-called wild telemarketing. In a substantial number of complaints, the interested parties report being contacted not only in the absence of an appropriate legal basis but also using particularly insidious language and commercial techniques. Often, the telephone operator, pretending to call on behalf of another data controller (a competitor or fictitious administrative offices), informs the user about the existence of fictitious technical-administrative problems, bonuses, or even tariff increases, only to propose the activation of an energy supply precisely with Energia Pulita (cf. File No. 381587 "The operator knew my name/surname and proposed the switch to Energia Pulita to avoid alleged state increases of 30% on the electricity supply"; File No. 331890 "The operator first posed as the National Electric Service, with whom I currently have the supply, saying that I would automatically switch to Energia Pulita from March 1, 2024, and asking me to confirm the data for activation. When I responded that I know the switch to the gradual protection market is on April 1 and that until then I can change operator whenever I want, she started to become aggressive and then I hung up"; File No. 337805 "I spoke with a person who, identifying herself as an employee of the national electric service of greater protection (with whom I have a contract), was asking for data to move my contract which by law has been transferred to the new identified manager (Energia Pulita)").

Furthermore, it should be added that from the checks conducted at the ROC and by the company's own admission, some contacts subject to reporting were found to be attributable to the agency RG Group S.r.l., to which Energia Pulita had granted the appointment as responsible or to its sub-responsibles (i.e., Rocket S.r.l. and Dialtech S.r.l.s).

Moreover, the significant case of sudden switches requested by customers, highlighted by the feedback provided on the reports - from which it emerges that in eight cases, the reporters had activated a supply with Energia Pulita only for a month or a little more - constitutes further confirmation of the occurrence of promotional activities using means and methods not in line with current regulations.

Moreover, the procedure for managing requests for callbacks transmitted by interested parties by filling out the forms available on the company's website does not appear to be suitable to ensure the accuracy and legitimate origin of personal data, since the only safeguard in this regard provided by the data controller is to prevent the conclusion of contracts through a delegate in channels other than physical ones.

From another and different perspective, the findings that emerged during the proceedings are sufficient to ascertain the violation of the obligations imposed on the data controller pursuant to Articles 5, 24, 25, 28, and 32 of the Regulation. On one hand, in fact, all the documentation and deductions submitted in the proceedings, while presenting the picture of a corporate entity sensitive to the matter of personal data protection, simultaneously denote a significant delay in complying with the obligations imposed by current regulations.

On the other hand, from the investigation carried out, it emerged that the Company failed to carry out necessary checks on the entire processing chain and to implement adequate technical and organizational security measures to prevent the risk of activating supplies resulting from illicit contacts, thus fueling the so-called undergrowth of telemarketing.

Initially, it should be noted that numerous measures and precautions regarding personal data protection were implemented only between the end of 2023 and the beginning of 2024, thus several years after the entry into force of the European Regulation on personal data protection. In this regard, the exception raised by the data controller, according to which this delay would be due to negotiations with Green Network S.p.A., cannot be accepted, since the Company stated that the acquisition of the business branch took place on January 16, 2023, while the corporate compliance process - it is reiterated - was only undertaken between the end of 2023 and the beginning of 2024.

Moreover, by virtue of the principles of privacy by default and privacy by design, the data controller is obliged to adopt adequate technical and organizational measures in relation to the risks to the rights and freedoms of the interested parties before carrying out processing operations and, subsequently, to constantly update its privacy framework also in relation to technological and socio-economic developments.

Furthermore, prior to the commencement of the aforementioned compliance process, the Company had not yet adopted certain minimum and essential measures, which are independent of the company's size characteristics. The reference is, for example, to the formalization and implementation of an effective procedure for the selection of suppliers and agents, which pursuant to Article 28 of the Regulation ensures ex ante that only subjects with appropriate skills in the field of personal data protection are engaged (so-called *culpa in eligendo*). However, similar considerations can also be made regarding the delayed implementation of a blocking check call mechanism, which prevents the entry into the company's systems of contracts concluded following illicit contacts, the training of collaborators, and the appropriate security measures for access to the systems (e.g., MFA and IP tracking).

Both the findings from the checks carried out during the so-called sample week and the documentation in the proceedings also attest to the occurrence – and ongoing – violation of the obligations imposed on the data controller concerning the control and supervision of the actions of the data processors (so-called *culpa in vigilando*), related to the provision of merely formal compliance obligations, which were not followed by the actual implementation of effective and thorough verification initiatives, even on-site or by sampling.

In fact, numerous contacts that are the subject of complaint and were made in the absence of the prerequisites of legitimacy, following the checks conducted at the ROC or by the Company's own admission, were carried out precisely by agencies operating on behalf of Energia Pulita. In this regard, the circumstance that, despite having declared to acquire copies of the rental contracts, the data controller relied on contact lists formed based on personal data collected through web portals that did not provide adequate guarantees regarding the origin of the personal data, the correct acquisition of the consent of the data subjects, and the provision of information on the processing of personal data is particularly significant.

Moreover, the fact that the Company documented the actual performance of auditing and training activities only starting from 2024, even under this aspect, further confirms the occurred non-compliance with the obligations imposed on the data controller pursuant to Article 28 of the Regulation.

Finally, with reference to the information available on the company's website regarding the processing carried out for the management of curricula and applications, while appreciating the effort made by the data controller in updating the relevant information even during the proceedings, it has been established that there has been a violation of the principles of clarity and transparency set forth in Articles 5, 12, and 13 of the Regulation, both in relation to the lawfulness of the processing and the existence of an appropriate legal basis pursuant to Articles 5, 6, 7, and 9 of the Regulation and Article 111-bis of the Code.

The processing of personal data, in fact, is carried out in compliance with such basic and fundamental principles when the data subject is adequately informed about the purposes and methods of processing and thus placed in a position to provide their personal data in an informed and conscious manner. It follows that in the case of online fillable forms, the information must be immediately available for consultation before the actual provision of the data, and a mere subsequent and eventual declaration cannot fulfill this obligation.

In this specific case, the form useful for submitting applications was aimed at collecting personal data belonging to potential candidates interested in collaborating with the Company, and in the opinion of the latter, the circumstance that the information was provided during the interview could be considered equivalent or sufficient to compensate for the failure to provide it at a stage prior to the collection of

data. This assessment is not shareable, as it contradicts the rationale and spirit of the regulation, but above all because in the event of a missed interview, the potential candidate ends up providing a series of detailed personal information, possibly even of a particular nature in the case (for example) of belonging to a protected category, without the possibility of knowing the purposes and methods of processing or the channels made available by the data controller for exercising the rights recognized to the data subject pursuant to Articles 15 and following of the Regulation.

On the other hand, in the previous versions of the information in question, the data controller had not even correctly identified the legal basis for the processing, with consequent impacts on the lawfulness and transparency of the processing and on any consents that may have been granted.

On this point, the exception raised by the data controller regarding the circumstance that the incorrect identification of the legal basis does not constitute a relevant violation or one that could cause harm to the data subject cannot be accepted, since the legal basis is an essential element of the information and constitutes the foundation of the lawfulness of the processing. Furthermore, the identification of the legal basis is closely related to the identification of the rights exercisable by the data subject (i.e., opposition, revocation of consent). Moreover, the data protection regulations are designed to protect a fundamental interest of the person, with respect to which the

****Legislator has peacefully established an anticipatory protection that is independent of the verification of a material or non-material damage.****

For all the reasons illustrated, in the specific case, the prerequisites for considering the regime of minor violations applicable do not exist, as provided and interpreted in light of Recital No. 148 and the recent rulings of the CJEU, also taking into account the number of interested parties involved, the duration of the violation, and the particularly insidious nature of the means used to carry out the conduct subject to verification related to the pervasiveness of web and internet portals, as well as the circumstance that the measures adopted so far by the data controller are not sufficient to fully remedy the established violations.

Therefore, the responsibility of Energia Pulita regarding the contested violations must be definitively confirmed.

****4. CONCLUSIONS****

For the reasons stated above, the responsibility of Energia Pulita regarding the following violations is deemed established:

- a) Articles 5, 6, 7, 24, 32, and 25 of the Regulation, as well as Article 130 of the Code for having carried out personal data processing in violation of the principles of lawfulness and accountability, in the absence of an appropriate legal basis and implementing technical and organizational measures that are inadequate to ensure, from the design stage, and to be able to demonstrate, that the processing is carried out in accordance with the Regulation;
- b) Articles 5, 24, 25, 28, 29, and 32 of the Regulation for having carried out personal data processing using internal and external subjects to the corporate organization, in violation of the obligations imposed on the data controller regarding the identification, training, direction, and monitoring of the actions of the designated subjects (so-called culpa in eligendo and culpa in vigilando);
- c) Articles 5, 6, 7, 9, 12, and 13, as well as Article 111 bis of the Code for having carried out personal data processing in the absence of prior and correct identification of the legal basis for the processing and the provision of the required information.

Having established the unlawfulness of the Company's conduct concerning the processing examined, it is also necessary to:

- impose on Energia Pulita, pursuant to Article 58, paragraph 2, letter f) of the Regulation, the prohibition of any further processing of the data belonging to the aforementioned reporters;
- order Energia Pulita, pursuant to Article 58, paragraph 2, letters d) and e) of the Regulation, to inform the 68 interested parties, whose personal data have entered the Company's systems following

unlawful contacts, of the outcomes of today's proceedings based on a text to be agreed upon with the Authority in the application of this provision;

- order Energia Pulita, pursuant to Article 58, paragraph 2, letter d) to prepare adequate controls within its sales network and appropriate implementations of the systems, in order to exclude that contracts generated from unlawful contacts may enter the corporate assets;
- adopt an injunction order, pursuant to Articles 166, paragraph 7, of the Code and 18 of Law No. 689/1981, for the application against Energia Pulita of the administrative pecuniary sanction provided for by Article 83, paragraphs 3 and 5, of the Regulation.

****5. INJUNCTION ORDER FOR THE APPLICATION OF THE ADMINISTRATIVE PECUNIARY SANCTION****

The violations indicated above require the adoption of an injunction order, pursuant to Articles 166, paragraph 7, of the Code and 18 of Law No. 689/1981, for the application against Energia Pulita of the administrative pecuniary sanction provided for by Article 83, paragraphs 3 and 5, of the Regulation (payment of an amount up to €20,000,000.00 or, for companies with over €500,000,000 in turnover, up to 4% of the annual global turnover of the previous financial year, if higher).

For the determination of the maximum penalty of the pecuniary sanction, it is therefore necessary to refer to the turnover of Energia Pulita, as derived from the latest available financial statements (March 2024) in accordance with the previous measures adopted by the Authority, and thus this maximum penalty is determined, in the case in question, at €20,000,000.00.

For the determination of the amount of the sanction, it is necessary to take into account the elements indicated in Article 83, paragraph 2, of the Regulation.

In the case at hand, the following are relevant:

1) the severity of the violations (Article 83, paragraph 2, letter a) of the Regulation), taking into account the subject matter and purposes of the data processed, related to the overall phenomenon of telemarketing, regarding which the Authority has adopted, particularly in the last five years, numerous measures, as well as the Code of Conduct on telemarketing, which have thoroughly examined multiple critical elements providing the controllers with numerous indications to adapt the processing to the current regulations and to mitigate the impact of nuisance calls on the interested parties;

2) as a mitigating factor (Article 83, paragraph 2, letter f) of the Regulation), the degree of cooperation with the supervisory Authority in order to remedy the violation.

Based on the overall elements indicated above, and the principles of effectiveness, proportionality, and deterrence provided for by Article 83, paragraph 1, of the Regulation, and taking into account the necessary balancing between the rights of the interested parties and the freedom of enterprise, also in order to limit the economic impact of the sanction on the organizational and functional needs of the Company, it is believed that the sanction should be applied to Energia Pulita.

****Administrative Order for the Payment of a Sum of Euro 300,000.00, Equal to 1.5% of the Maximum Administrative Fine.****

In the case at hand, it is deemed necessary to apply the accessory sanction of publication on the website of the Authority of this provision, as provided for by Article 166, paragraph 7 of the Code and Article 16 of the Authority's Regulation No. 1/2019, taking into account the nature of the processing and the conduct of the Company, as well as the risk factors for the rights and freedoms of the data subjects.

In implementation of the principles set forth in Article 83 of the Regulation, the imposition of this accessory sanction appears reasonable and proportionate in relation to the number of affected subjects involved, the duration of the violations, and the particular danger and pervasiveness of the conduct subject to verification, related to the use of web portals and the internet.

Finally, the prerequisites of Article 17 of Regulation No. 1/2019 concerning internal procedures with external relevance, aimed at carrying out the tasks and exercising the powers delegated to the

Authority, are met.

****THEREFORE, THE AUTHORITY****

- a) imposes on Energia Pulita, pursuant to Article 58, paragraph 2, letter f) of the Regulation, the prohibition of any further processing of the personal data belonging to the aforementioned whistleblowers;
- b) orders Energia Pulita, pursuant to Article 58, paragraph 2, letters d) and e) of the Regulation, to communicate to the 68 data subjects, whose personal data have entered the Company's systems as a result of unlawful contacts, the outcomes of today's proceedings based on a text to be agreed upon with the Authority during the application of this provision;
- c) orders Energia Pulita, pursuant to Article 58, paragraph 2, letter d) to implement adequate controls within its sales network and appropriate system upgrades, in order to exclude the possibility that contracts generated from unlawful contacts may enter the company's assets;
- d) orders Energia Pulita, pursuant to Article 157 of the Code, to inform the Authority, within thirty days from the notification of this provision, of the initiatives undertaken to implement the measures imposed in the previous letters; any failure to comply with the provisions of this point may result in the application of the administrative monetary sanction provided for by Article 83, paragraph 5, of the Regulation;

****ORDERS****

Energia Pulita S.r.l., represented by the pro tempore legal representative, with registered office in Milan (MI), via Vincenzo Monti, 48, VAT No. 10802400969, to pay the sum of Euro 300,000.00 (three hundred thousand/00) as an administrative monetary sanction for the violations indicated in the reasoning, noting that the offender, pursuant to Article 166, paragraph 8, of the Code, has the option to settle the dispute by complying with the imposed prescriptions and paying, within thirty days, an amount equal to half of the imposed sanction.

****ORDERS****

the aforementioned Company, in case of failure to settle the dispute pursuant to Article 166, paragraph 8, of the Code, to pay the sum of Euro 300,000.00 (three hundred thousand/00), according to the methods indicated in the annex, within 30 days from the notification of this provision, under penalty of the adoption of subsequent enforcement actions pursuant to Article 27 of Law No. 689/1981.

****PROVIDES****

- a) the publication of this provision, pursuant to Articles 154-bis of the Code and 37 of Regulation No. 1/2019;
- b) the application of the accessory sanction of publication on the Authority's website of this injunction order, as provided for by Articles 166, paragraph 7 of the Code and 16 of the Authority's Regulation No. 1/2019;
- c) the annotation of this provision in the internal register of the Authority - as provided for by Article 57, paragraph 1, letter u), of the Regulation, as well as by Article 17 of Regulation No. 1/2019 concerning internal procedures with external relevance, aimed at carrying out the tasks and exercising the powers delegated to the Authority - relating to the violations and measures adopted in accordance with Article 58, paragraph 2, of the same Regulation.

Pursuant to Article 78 of the Regulation, as well as Articles 152 of the Code and 10 of Legislative Decree No. 150 of September 1, 2011, an appeal against this provision may be filed with the ordinary judicial authority, with a petition submitted to the ordinary court of the place where the data controller resides, or, alternatively, to the court of the place of residence of the data subject, within thirty days from the date of communication of the provision itself, or sixty days if the appellant resides abroad.

Rome, February 27, 2025

****THE PRESIDENT****

Stanzione

****THE RAPPORTEUR****

Ghiglia

****THE SECRETARY GENERAL ****

Mattei